

ROGGE LOSES SUIT FOR FEE

Counsel for Christoffel Sought to Attach Bail Funds

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WASHINGTON, Feb. 27 — Efforts by O. John Rogge to attach funds of the Civil Rights Congress received a setback today when Federal Judge Henry A. Schweinhaut ruled against the demand.

In a short opinion, Judge Schweinhaut said it was "clear" that his court lacked jurisdiction to grant the proposed attachment. Mr. Rogge had filed suit to collect his charge for defending Harold R. Christoffel, former president of the local union of the United Automobile Workers, C. I. O., at the Allis-Chalmers plant in Milwaukee.

Before the House Committee on Education and Labor Christoffel denied that he had ever been a member of the Communist party. He was indicted for perjury and convicted.

Mr. Rogge's suit was directed at bail funds for Christoffel posted by the Civil Rights Congress, and now impounded by New York State and the Federal Government.